

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

-----X
KENTON DEGALE,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

THE CITY OF NEW YORK and POLICE OFFICER
VASILE DUBOVICI (Shield # 28892),

Defendants.
-----X

SUMMONS

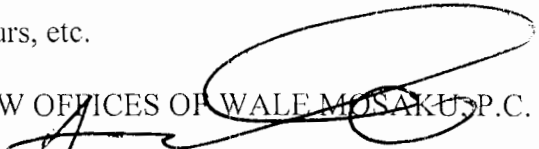
The plaintiff resides at:
Kings County, New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
February 16, 2015

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
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Brooklyn, New York 11201
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THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

KENTON DEGALE,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK and POLICE OFFICER
VASILE DUBOVICI (Shield # 28892),

Defendants.

-----X

KENTON DEGALE (hereinafter "plaintiff"), by his attorney(s), THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants, THE CITY OF NEW YORK and POLICE OFFICER VASILE DUBOVICI (Shield # 28892) (both referred to as "the defendants"), upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. Plaintiff is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff is an African American male of full age.
3. At all relevant times, defendants POLICE OFFICER VASILE DUBOVICI (Shield # 28892) (hereinafter "defendant officer"), upon information and belief, was and still is a law enforcement officer in

the employ of the police department of the City of New York (hereinafter "NYPD").

4. At all times herein, the defendant officer was employed as a law enforcement officer of the City of New York, State of New York, and was acting under the color of his official capacity, and his acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officer was the servant, agent, and employee of his co-defendant, the City of New York, so that his acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officer, through its Police Department, namely NYPD, and the actions of the defendant officer complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

FACTUAL ALLEGATIONS

7. On or about October 3, 2012 at approximately 08:00 p.m., in front of 999 President Street, Brooklyn, New York (subject location), the plaintiff was falsely arrested without probable cause by the defendant officer.
8. That at the time of his arrest, the plaintiff was also assaulted, battered and subjected to excessive force by the defendant officer.
9. Following his arrest, the plaintiff was then transported to the 71st precinct.
10. At the 71st precinct, the plaintiff was then processed, or otherwise fingerprinted and photographed.
11. At the 71st precinct, the plaintiff was also rendered emergency treatment by the Emergency Medical Services ("EMS").

12. Subsequently, the plaintiff was transported to the Kings County Hospital Center "(KCH)", where he received further treatment.
13. After receiving treatment at KCH, the plaintiff was discharged to the custody of NYPD officers, whereupon he was returned to the 71st precinct.
14. Subsequently, the plaintiff was transported to "central booking", situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn New York 11201.
15. Subsequently, the plaintiff was arraigned before a Kings County criminal court judge on the following charges:
 - a. AC 10-125(B) - "Consumption of Alcohol in Public";
 - b. P.L. 195.05 - "Obstructing Governmental Administration in the Second Degree";
 - c. P.L. 205.30 - "Resisting Arrest".
16. Upon arraignment, the plaintiff pleaded "*not guilty*", at which time bail was set in an amount that the plaintiff could not afford to post immediately, whereupon he was remanded to the Rikers Island Correctional Facility. The docket number of the Kings County Criminal Court was 2012KN082402.
17. The criminal case against the plaintiff was adjourned in contemplation of dismissal on June 18, 2014. The criminal action against the plaintiff was dismissed on December 17, 2014.

CAUSE OF ACTION AGAINST THE DEFENDANT OFFICER: FALSE ARREST
AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983

18. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 17 of this complaint as though fully set forth herein.
19. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.

20. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
21. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officer.

CAUSE OF ACTION AGAINST THE DEFENDANT OFFICER: DENIAL OF A
CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO
THE FABRICATION OF EVIDENCE

22. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 21 of this complaint as though fully set forth herein.
23. The defendant officer created false evidence against the plaintiff.
24. The defendant officer forwarded false evidence and false information to the prosecutors in the Kings County District Attorney's office.
25. That the defendant officer was directly involved in the initiation of criminal proceedings against the plaintiff.
26. That the defendant officer lacked probable cause to initiate criminal proceedings against the plaintiff.
27. That the defendant officer acted with malice in initiating criminal proceedings against the plaintiff.
28. That the defendant officer was directly involved in the continuation of criminal proceedings against the plaintiff.
29. That the defendant officer lacked probable cause in continuing criminal proceedings against the plaintiff.
30. That the defendant officer acted with malice in continuing criminal proceedings against the plaintiff.

31. That the defendant officer misrepresented and falsified evidence throughout all phases of the criminal proceeding.
32. That the defendant officer misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
33. That the defendant officer withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
34. That the defendant officer did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
35. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, the defendant officer violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
36. As a consequence of the defendant officer's actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated.
37. Consequently, plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against the defendant officer.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST THE
DEFENDANT OFFICER: EXCESSIVE FORCE UNDER 42 U.S.C § 1983

38. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. The level of force employed by the defendant officer was objectively unreasonable, and in violation of the plaintiff's constitutional rights.
40. As a result of the aforementioned conduct of the defendant officer, the plaintiff was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.

41. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officer.

CAUSE OF ACTION: MUNICIPAL LIABILITY UNDER 42 U.S.C §
1983

42. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 41 of this complaint as though fully set forth herein.
43. The defendant officer arrested and incarcerated the plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding his knowledge that said arrest and incarceration would jeopardize the plaintiff's liberty, well-being, safety and constitutional rights.
44. The acts complained of were carried out by the individual defendant in his capacities as a police officer and official, with all the actual and/or apparent authority attendant thereto.
45. The defendant officer acted under color of law, in his official capacity, and his acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.
46. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practices:
- a. Wrongfully arresting individuals on a pretext;
 - b. manufacturing evidence against individuals;
 - c. arresting innocent persons in order to meet "productivity" goals (i.e. arrest quotas).
 - d. Wrongfully brutalizing innocent members of the public, despite the lack of justification to do so.
47. The aforesaid event was not an isolated incident. The City and its police commissioner has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint

Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, subject the innocent citizenry to excessive force, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City and its police commissioner have allowed policies and practices that allow the aforementioned to persist.

48. For example, the well documented failures of the Civilian Complaint Review Board (“the CCRB”), a City agency, to substantiate obviously meritorious citizen complaints have gone uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers’ misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.
49. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event, such as the matter at bar, that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an

officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which has been done on many occasions.

50. Further, the City and its police commissioner have no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected.
51. Additionally, according to a report of the New York City Bar Association issued in 2000, the City and Kelly have isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers.
52. The existence of the aforesaid unconstitutional customs and policies may also be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set "productivity goals".
53. Furthermore, the existence of the aforesaid unconstitutional customs and policies may also be inferred from the ruling (Docket entry 32) of the Court (Eastern District of New York), in the case(s) of Jose Colon v. City of New York, et al (09-cv-8) and Maximo Colon v. City of New York, et al (09-cv-9), wherein the Court stated, *inter alia*, that "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting officers of the New York City Police Department", and that "there is some evidence of an attitude among officers that is

sufficiently widespread to constitute a custom or policy by the city approving the illegal conduct of the kind now charged".

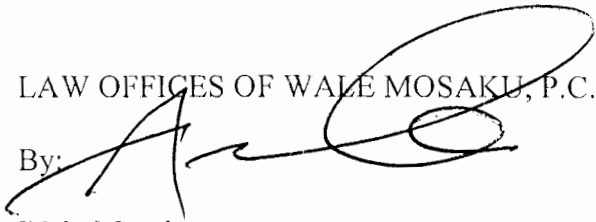
54. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiff; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:
- (a) The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.
 - (b) The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.
 - (c) The right to be free from unreasonable detention and/or continued detention without probable cause in that the plaintiff was detained.
 - (d) The right to be free from the use of excessive force.
55. As a result of the actions of the defendants, the plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, and New York City without just or legal cause when defendant City, by its employee and/or agent, specifically the defendant officer, unlawfully arrested and imprisoned the plaintiff, and at the same time subjected him to assault, battery and excessive force, thereby depriving him of his liberty without due process of law, .

56. The defendant officer was the actual agent of the defendant City of New York and was following the customs, practices, ordinances and/or regulations of the City of New York when he violated the plaintiff's constitutional and civil rights, and the City of New York is therefore responsible for his acts, and liable to the plaintiff for the damages he suffered.
57. The actual principal/agent relationship between defendant City and the defendant officer was created by the fact he (the defendant officer) was an employee of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officer.
58. The defendant officer's actions were vicious, wicked, cold-hearted, intentional, malicious, unwarranted and in violation of the law. The defendant officer had full knowledge that the charges made before the Court against the plaintiff were false and untrue.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
February 15, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
KENTON DEGALE,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK and POLICE OFFICER
VASILE DUBOVICI (Shield # 28892),

Defendants.

-----X

The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
February 16, 2015

LAW OFFICES OF WALE MOSAKU, P.C.



BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index No.

KENTON DEGALE,

Plaintiff(s),

-against-

THE CITY OF NEW YORK and POLICE OFFICER
VASILE DUBOVICI (Shield # 28892),

Defendant(s).

SUMMONS & COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200__

Attorneys for Defendant(s)
